

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RACHEL HIATT,

Petitioner

VS.

ROBERT SPEIGHT,

Respondent

) Case Number: FDI-24-799715

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ENFORCEMENT OF STIPULATED JUDGMENT (8/15/25, SECTION 3.2)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) Petitioner Rachel Hiatt (Wife) and Respondent Robert Speight (Husband) married on 5/8/2014 and separated on 4/26/2024, for a marriage of 9 years and 11 months. The parties have no minor children. Both parties are self-represented.

2) On 10/29/2025, a Stipulated Judgment was entered in this matter resolving all issues, which provides in relevant part:

- a. **Section 2.2:** “To equalize the division of community property assets and obligations as set forth in this Judgment, Wife is Ordered to pay Husband the sum of One Hundred Five Thousand Dollars (\$105,000) via QDRO from her CalPERS 457(b) retirement account. This payment is found to by the Court to be a tax-free interspousal transfer related to the cessation of marriage to effect a division of marital property under Internal Revenue Service 1041 and comparable provisions of state law.”

1 b. **Section 3.2.1:** “It is intended that the total equalization payment of One Hundred Five
2 Thousand Dollars (\$105,000) be distributed in cash directly to Husband pursuant to the
3 QDRO and shall be payable as a lump-sum monetary distribution from Wife’s CalPERS
4 457(b) account. This amount is a fixed obligation, not contingent upon market conditions,
5 plan valuation, or percentage interest. Husband shall receive the full \$105,000 free and
6 clear of any tax liability, penalty, or encumbrance, and Wife shall indemnify and hold
7 Husband harmless from any [and] all taxes, costs, and penalties associated with this
8 transfer, consistent with Internal Revenue Code Section 1041 and applicable state law.
9 Should any taxes, penalties, or other encumbrance reduce Husband’s initial net receipt,
10 Wife shall reimburse to Husband the exact amount of the reduction. Both parties will
11 work together to effectuate the intention of this agreement, which is for Husband to net
12 \$105,000.”

13 3) On 11/17/2025, a Qualified Domestic Relations Order was entered requiring the CalPERS 457
14 Plan to distribute \$105,000 to Husband as a “single lump-sum cash payment.”

15 4) Now on for hearing is Husband’s Request for Order filed 4/17/2026. Husband states that on
16 3/26/2026, he received a distribution from the CalPERS 457 plan of \$71,073.38. Husband states
17 that \$30,460.02 was withheld for federal taxes. Husband states he reached out to Wife multiple
18 times to request that she reimburse him the \$30,460.02 that was withheld. Wife first stated she
19 could liquidate \$10,000 within 7 to 10 days but then stated she could only afford to pay \$500 per
20 month towards this sum. Husband states that payment of \$500 per month would take over five
21 years to satisfy the obligation, excluding interest, and does not constitute reasonable compliance
22 with a court-ordered indemnification obligation. Husband attached a printout from the
23 Transparent California website which appears to show that Wife earned \$221,655 in income in
24 2024 as the Deputy Director for Planning of the San Francisco County Transportation Authority.
25 Husband asks the Court to:

- 26 a. Order Wife to pay Husband \$30,460.02 within 10 calendar days of the Court’s order;
27 b. Award Husband statutory interest on this amount at the rate of 10% per annum
28 commencing 3/26/2026;
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- 1 c. Award Husband \$1,200 in Family Code section 271 “reflecting the time and effort I have
2 expended as a result of Petitioner’s failure to comply with the judgment;”
- 3 d. Authorize enforcement remedies, including but not limited to earnings assignment and
4 other collection methods, and authorize Husband to proceed with enforcement without
5 further hearing if Wife fails to pay within the timeframe ordered by the Court.
- 6 5) Per the Proof of Electronic Service filed 4/13/2026, Husband’s Request for Order was emailed to
7 Wife on 4/11/2026.
- 8 6) The Court notes that, per the Findings and Orders filed 4/14/2025, the parties agreed to electronic
9 service.
- 10 7) Wife did not file a Responsive Declaration.

11 **B. Findings and Order**

- 12 1) There is no evidence in the record that Wife was served with a file-endorsed copy of Husband’s
13 4/17/2026 Request for Order, and therefore there is no evidence in the record that Wife has
14 received notice of the hearing date set for Husband’s 4/17/2026 Request for Order. The Court
15 also notes that Husband’s Proof of Service does not mention that Husband served Wife with a
16 blank Responsive Declaration (as required by California Rules of Court, rule 5.92(f)(2)(4)) or a
17 copy of the Tentative Ruling Instructions (as required by San Francisco Local Rules, rule
18 11.7(D)(3)(a)).
- 19 2) The hearing on Husband’s 4/17/2026 Request for Order is hereby continued to **Tuesday,**
20 **8/4/2026 at 9:00 AM in Dept. 404.**
- 21 3) By the deadlines set forth in the Code of Civil Procedure, Husband shall have the following
22 pleadings served on Wife:
- 23 a. Blank Responsive Declaration
- 24 b. Tentative Ruling Instructions
- 25 c. Findings and Order After Hearing for the 5/28/2026 hearing date (which will be mailed to
26 Husband)
- 27 4) At least 10 calendar days prior to the next hearing date, Wife shall file and serve a fully
28 completed Income and Expense Declaration.
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1 5) If the parties require further assistance, they may contact the ACCESS Center. Information for
2 contacting the ACCESS Center can be found here: [https://sf.courts.ca.gov/access-legal-self-help-](https://sf.courts.ca.gov/access-legal-self-help-center)
3 [center](https://sf.courts.ca.gov/access-legal-self-help-center).

4 6) The Court will prepare the Findings and Order After Hearing.
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